
2:00 PM - LINE 4

24-CIV-02354

BALTAZAR GUILLEN MOLINA VS. TIAN BAI

BALTAZAR GUILLEN MOLINA
TIAN BAI

MARIE C. BALLON
TIMOTHY B. MCCORMICK

MOTION TO BE RELIEVED AS COUNSEL

TENTATIVE RULING:

Initially, the court notes that plaintiff has provided an incorrect address for the hearing. Department 28 is not located in Redwood City as the notice states, but instead at the Central Courthouse, Courtroom I, 800 North Humboldt St., San Mateo, CA 94401. (See Cal. Rules of Court, Rule 3.1110 [the Notice “must specify” the location of the hearing].)

The unopposed motion of Marie C. Ballon and Arianne Espinueva of Valero Law Group to be relieved as counsel of record for plaintiff Baltazar Guillen Molina is **DENIED without prejudice** for lack of proper proof of service. The Proof of Service indicates defense counsel was served with the moving papers by email to tim.mccormick@farmersinsurance.com and celeste.paris@farmersinsurance.com. Defendant’s electronic address of record is norcal.legal@farmersinsurance.com.

In addition, the Proof of Service indicates plaintiff and defendant were served on March 12, 2026, the same day the motion was filed. However, the hearing date was changed from June 17, 2026, to July 29, 2026, at the time of filing. It is unclear whether the copy of the notice served on March 12 was the original or amended version. To date, the court’s record does not reflect the filing or service of an amended notice.

Finally, the court notes that the motion is made on behalf of Marie C. Ballon, Arianne Espinueva, and Valero Law Group. However, the Notice of Motion and Motion and the supporting declaration are signed only by Ms. Espinueva. Even if counsel may seek relief on behalf of the firm, no authority is cited permitting the motion to seek relief on behalf of Ms. Ballon.

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, plaintiffs’ counsel shall prepare a written order consistent with the court’s ruling for the court’s signature, pursuant to California Rules of Court, Rule 3.1312 and Local Rule 3.403(b)(iv), and provide written notice of the ruling to all parties who have appeared in this action. The order should be e-filed only, do not email or mail a hard copy to the court.

2:00 PM - LINE 5

24-CIV-06578

AARON KAMEYER VS KUMAR MANAGEMENT CORP. II, INC.

AARON KAMEYER
KUMAR MANAGEMENT CORP. II, INC.

HELGA HAKIMI
JONATHAN BRENNER

MOTION TO BE RELIEVED AS COUNSEL

TENTATIVE RULING:

The unopposed motion of Orlando Villalba to be relieved as counsel of record for plaintiff Aaron Kameyer is **DENIED without prejudice**. Plaintiff's counsel has not offered sufficient proof that the moving papers were served in compliance with California Rules of Court, rule 3.1362(d). The proof of service does not reflect that the motion and declaration were served on the client as required by the rule of court.

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, plaintiff's counsel shall prepare a written order consistent with the court's ruling for the court's signature, pursuant to California Rules of Court, Rule 3.1312 and Local Rule 3.403(b)(iv), and provide written notice of the ruling to all parties who have appeared in this action. The order should be e-filed only, do not email or mail a hard copy to the court.